



# ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session*

*Majority Research Staff*

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## **HCR2001: citizenship; identification; contributions; early voting**

### **KOLODIN FLOOR AMENDMENT**

1. Requires that only citizens of the U.S. be eligible to register and vote once for each available office or ballot measure, in any *primary, general or municipal* election in Arizona, rather than in any *public* election in Arizona.
2. Strikes language that prohibits contributions from a foreign corporation to any Arizona candidate or ballot measure.
3. Prohibits a foreign national from making any contribution or expenditure for the purpose of influencing any Arizona election.
4. Prohibits a person from knowingly accepting from a foreign national any contribution or expenditure for the purpose of influencing any Arizona election.
5. Clarifies that all *qualified* electors must be required to provide a government issued identification concurrent with casting a ballot.
6. Requires that acceptable identification be made available to *qualified* electors *solely at the state's expense*, rather than *free of charge*.
7. Requires early voting, if authorized by law, to end no later than 7 p.m. on the Friday prior to *the election*, rather than *the Tuesday general election*.
8. Allows early ballots delivered through the U.S. Postal Service to be accepted until the closing of polls on election day.
9. Prohibits votes from being cast or accepted after poll closing times on *election day*, rather than after poll closing times on *general election day*.
10. Specifies that a qualified elector who is standing in line by the time polls close must be permitted to vote.
11. Strikes language from the underlying resolution outlining that all qualified electors must have the right to vote in-person on election day at conveniently located polling places.
12. Allows all qualified electors to be offered an opportunity to receive a mail-in ballot, provided:
  - a. the qualified elector has made an affirmative request confirming a specific mail address prior to each biennial general election;

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- b. the qualified elector provided documented proof of citizenship at the time they registered to vote;
- c. mail-in voting is authorized by law; and
- d. any other requirements provided by law are satisfied.

13. Adds a legislative intent clause.

KOLODIN SUBSTITUTE FLOOR AMENDMENT  
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.C.R. 2001

I move the following SUBSTITUTE amendment to the FEDERALISM, MILITARY AFFAIRS & ELECTIONS  
Committee Amendment to  
HOUSE CONCURRENT RESOLUTION 2001 (Reference to printed resolution)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or  
previously enacted session law.  
[Green underlining in brackets] indicates text added to new session law  
or text restoring existing law.  
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute  
or previously enacted session law.  
[Green strikeout in brackets] indicates text removed from existing statute,  
previously enacted session law or new session law.  
<<Green carets>> indicate a section added to the bill.  
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The resolution as proposed to be amended is reprinted as follows:

2 1. Article VII, Constitution of Arizona, is proposed to be amended  
3 by adding section 19 as follows if approved by the voters and on  
4 proclamation of the Governor:

5 19. Elections; citizens; foreign contributions;  
6 identification; early voting; severability

7 SECTION 19. A. ONLY CITIZENS OF THE UNITED STATES  
8 SHALL BE ELIGIBLE TO REGISTER AND VOTE ONCE FOR EACH AVAILABLE  
9 OFFICE OR BALLOT MEASURE, IN ANY [PUBLIC] [PRIMARY, GENERAL OR  
10 MUNICIPAL] ELECTION IN ARIZONA.

11 B. ~~[CONTRIBUTIONS FROM ANY FOREIGN PERSON OR FOREIGN~~  
12 ~~CORPORATION TO ANY ARIZONA CANDIDATE OR BALLOT MEASURE~~  
13 ~~CAMPAIGN SHALL BE PROHIBITED.]~~ [A FOREIGN NATIONAL SHALL NOT  
14 MAKE, AND NO PERSON SHALL KNOWINGLY ACCEPT FROM A FOREIGN  
15 NATIONAL, ANY CONTRIBUTION OR EXPENDITURE FOR THE PURPOSE OF  
16 INFLUENCING ANY ARIZONA ELECTION.]

17 C. CONCURRENT WITH CASTING A BALLOT, ALL [QUALIFIED]  
18 ELECTORS SHALL BE REQUIRED TO PROVIDE A GOVERNMENT ISSUED  
19 IDENTIFICATION. ACCEPTABLE IDENTIFICATION, AS PROVIDED BY  
20 LAW, SHALL BE MADE AVAILABLE TO [QUALIFIED] ELECTORS [FREE OF  
21 CHARGE] [SOLELY AT THE STATE'S EXPENSE].

22 D. TO HELP ENSURE TIMELY ELECTION RESULTS:

23 1. EARLY VOTING, IF AUTHORIZED BY LAW, SHALL END NO  
24 LATER THAN 7:00 P.M. ON THE FRIDAY PRIOR TO [THE TUESDAY  
25 GENERAL ELECTION] [THE ELECTION, EXCEPT THAT EARLY BALLOTS  
26 DELIVERED THROUGH THE UNITED STATES POSTAL SERVICE MAY BE  
27 ACCEPTED UNTIL THE CLOSING OF POLLS ON ELECTION DAY].

28 2. VOTES SHALL NOT BE CAST OR ACCEPTED AFTER POLL  
29 CLOSING TIMES ON [GENERAL] ELECTION DAY, AS DESIGNATED BY LAW

1 [, BUT A QUALIFIED ELECTOR WHO IS STANDING IN LINE BY THE TIME  
2 POLLS CLOSE SHALL BE PERMITTED TO VOTE].  
3 ~~[E. ALL QUALIFIED ELECTORS SHALL HAVE THE RIGHT TO VOTE~~  
4 ~~IN PERSON ON ELECTION DAY AT CONVENIENTLY LOCATED POLLING~~  
5 ~~PLACES.]~~  
6 ~~[F.]~~[E.] ALL QUALIFIED ELECTORS ~~[[WHO HAVE PROVIDED~~  
7 ~~DOCUMENTED PROOF OF CITIZENSHIP SHALL]]~~ [MAY] BE OFFERED AN  
8 OPPORTUNITY TO RECEIVE A MAIL-IN BALLOT ~~[, WHICH SHALL BE~~  
9 ~~PROVIDED SOLELY UPON THEIR]~~ [PROVIDED:  
10 1. THE QUALIFIED ELECTOR HAS MADE AN] AFFIRMATIVE  
11 REQUEST CONFIRMING A SPECIFIC MAIL ADDRESS PRIOR TO EACH  
12 BIENNIAL GENERAL ELECTION~~[, IF MAIL-IN VOTING IS AUTHORIZED BY~~  
13 ~~LAW, AND IN SUCH A MANNER AS THE LAW PRESCRIBES.]~~ ];  
14 2. THE QUALIFIED ELECTOR PROVIDED DOCUMENTED PROOF OF  
15 CITIZENSHIP AT THE TIME THEY REGISTERED TO VOTE;  
16 3. MAIL-IN VOTING IS AUTHORIZED BY LAW; AND  
17 4. ANY OTHER REQUIREMENTS PROVIDED BY LAW ARE SATISFIED.]  
18 ~~[G.]~~[F.] IF A PROVISION OF THIS ACT OR ITS APPLICATION  
19 TO ANY PERSON OR CIRCUMSTANCE IS HELD INVALID, THE INVALIDITY  
20 DOES NOT AFFECT OTHER PROVISIONS OR APPLICATIONS OF THE ACT  
21 THAT CAN BE GIVEN EFFECT WITHOUT THE INVALID PROVISION OR  
22 APPLICATION, AND TO THIS END THE PROVISIONS OF THIS ACT ARE  
23 SEVERABLE.  
24 ~~[H.]~~[G.] THIS AMENDMENT SHALL COMMONLY BE KNOWN AS "THE  
25 ARIZONA SECURE ELECTIONS ACT."  
26 <<2. Intent  
27 [Nothing in this measure constitutes a change in the  
28 federal law for the UOCAVA process for overseas military  
29 voters.]>>  
30 3. The Secretary of State shall submit this proposition to the  
31 voters at the next general election as provided by article XXI,  
32 Constitution of Arizona.  
  
33 Enroll and engross to conform  
34 Amend title to conform

ALEXANDER KOLODIN

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